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PROPERTY RIGHTS

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Kissimmee 2040 Comprehensive Plan

Property Rights

date

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Cover photo source: City of Kissimmee Public Information Office

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GOALS, OBJECTIVES, AND POLICIES

This section stipulates goals, objectives, and implementing policies for the Property Rights pursuant to §163.3177(6)(i), Florida Statutes.

GOAL 1.1: PROPERTY RIGHTS

Ensure that the City of Kissimmee remains consistent with Florida State Statutes and regulations and that private property rights are considered in local decision-making.

OBJECTIVE 1.1.1: PROPERTY RIGHT PROTECTION

In accordance with the legislative intent expressed in F.S. 163.3161(10) and 187.101(3) that the City of Kissimmee shall respect judicially acknowledged and constitutionally protected private property rights.

POLICY 1.1.1.1: PROPERTY OWNER INTERESTS

The right of a property owner to physically possess and control their interests in the property, including easements, leases, or mineral rights.

POLICY 1.1.1.2: RIGHT TO USE AND DEVELOP PROPERTY

The right of a property owner to use, maintain, develop, and improve their property for personal use or for the use of any other person, subject to State law and local ordinances.

POLICY 1.1.1.3: PROPERTY OWNER EXCLUSION

The right of the property owner to privacy and to exclude others from the property to protect the owner's possessions and property.

POLICY 1.1.1.4: SALE OR GIFTING OF PROPERTY

The right of a property owner to dispose of his or her property through sale or gift.